

Amendment No. 1 to SB1422

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1422

House Bill No. 1166*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 38, Chapter 1, is amended by adding the following as a new part:

38-1-1001. Definitions.

As used in this part:

(1) "Bullying" means an act committed in a workplace by an employee or former employee of an employer that operates the workplace and that interferes with the employment benefits, opportunities, or performance of another person who is a current employee of the same employer that has the effect of:

(A) Physically harming the other employee or damaging the other employee's property; or

(B) Knowingly placing the other employee in reasonable fear of physical harm to the other employee or damage to the other employee's property;

(2) "Crime of violence" includes any degree of murder, voluntary manslaughter, aggravated rape, rape, aggravated sexual battery, especially aggravated robbery, aggravated robbery, burglary, aggravated burglary, especially aggravated burglary, aggravated assault, kidnapping, aggravated kidnapping, and especially aggravated kidnapping; and

(3) "Workplace" means a factory, plant, office, or other facility where employees produce goods or provide services.

38-1-1002. Investigations of bullying in the workplace.

When a law enforcement agency investigates a crime of violence in a workplace that was committed by an employee or former employee, the investigation must include an inquiry into whether bullying was occurring in the workplace and whether the crime of violence was a result of, or connected to, bullying.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.